

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Ayesha A. Malik

Justice Shakeel Ahmad

Civil Petitions No. 862-P to 865-P of 2024

(Against the judgment dated 23.09.2024 passed by the Peshawar High Court, Bannu Bench in C.Rs No. 127-B/2024, 129-B/2024, 134-B/2024, and 135-B/2024)

Government of KPK through the Secretary ...*Petitioners*
Elementary & Secondary Education Department,
Peshawar, & another (*in all cases*)

Versus

Rozina Abbas & Others (*in CP 862-P/2024*)

Mst. Fozia Khan (*in CP 863-P/2024*)

Musarrat Daraz & another (*in CP 864-P/2024*)

Malka Saba & others (*in CP 865-P/2024*)

...*Respondents*

For the Petitioners : Mr. Muhammad Bashir Naveed, Addl.
Advocate General, Khyber Pakhtunkhwa
alongwith Azmatullah Khan, LO.

For the Respondents : Mr. Masood Iqbal Khattak, ASC.

Date of Hearing : 18.02.2026

ORDER

SHAKEEL AHMAD, J.- These petitions for leave to appeal are directed against the consolidated judgment dated 23.09.2024 (“*the impugned judgment*”) rendered by the Peshawar High Court, Bannu Bench, Bannu (“*the High Court*”) whereby Civil Revision petitions filed by the petitioners were dismissed.

2. The facts giving rise to the present petitions are that the respondents were excluded from the merit lists for recruitment to the posts of Primary School Teachers (PSTs) in various Union Councils following the screening tests. Aggrieved by their omission, the respondents filed suits seeking a declaration that the non-inclusion of their names by the District Education Officer was illegal and violative of their rights, and prayed that they be included in the merit lists and that the recruitment process be carried out in accordance with law. The central question in all the suits was whether a candidate failing to obtain the minimum threshold of 40 percent marks in the NTS test could be regarded as eligible for inclusion in the merit list. The petitioners defended the exclusion on the basis that the recruitment policy dated 16.10.2017 mandated securing at least 40 percent marks in the NTS test as a condition of eligibility. The trial Court, by judgments and decrees dated 14.07.2023 and 20.11.2023, decreed the

suits in favour of the respondents. The petitioners' appeals before the appellate Court were dismissed vide judgment dated 27.02.2024. Aggrieved, the petitioners approached the High Court, which, through the impugned judgment, also dismissed the petitions. It is against this background that the instant petitions have been filed.

3. Heard both sides and record gone through.

4. The moot question requiring adjudication is whether the respondents, having admittedly participated in the selection process pursuant to an advertisement prescribing a minimum 40 marks out of 100 as the qualifying threshold, could competently institute a declaratory suit under Section 42 of the Specific Relief Act, 1877 (*"the Act"*), challenging the said criteria after having failed to secure the requisite marks. The controversy thus raises the following interconnected questions:

- i. Whether a declaratory suit was competent.
- ii. Whether the candidates possessed a legally enforceable right.
- iii. Whether the suit was barred by estoppel or acquiescence after participation in the recruitment process.

5. It is a settled principle of law that a declaratory decree can only be granted where the plaintiff establishes an existing legal character or a vested legal right that is denied or threatened to be denied. Section 42 of the Act does not permit adjudication of abstract questions or the creation of rights where none exist. A declaratory suit cannot be based on mere expectation or disagreement with policy, but must involve infringement of a subsisting right. In the present case, the respondents' claims were founded on an anticipation of inclusion in the merit list despite failing to meet the prescribed threshold. A candidate in a competitive recruitment process acquires at most a right to fair, equal, and non-discriminatory consideration, but no vested right to appointment exists unless the eligibility criteria are fulfilled. Where a valid policy prescribes minimum qualifying marks, failure to meet them extinguishes even this limited expectancy. Consequently, any claim for inclusion despite non-fulfilment of the criteria is, in substance, a challenge to policy itself, and unless the policy is shown to be ultra vires, beyond the authority of the competent forum, or violative of constitutional guarantees, no enforceable legal right arises.

6. The record reflects that, with respect to the appointment of PSTs, a policy dated 30.04.2014 had earlier removed the requirement of obtaining fifty percent marks in the NTS test. However, the recruitment policy dated 16.10.2017 expressly prescribed that securing at least 40 percent marks in the NTS test was mandatory for eligibility. The said policy was subsequently approved through a notification dated 09.11.2017 issued by the Minister for the Elementary and Secondary Education Department, Khyber Pakhtunkhwa. For ease of reference, the relevant portion of the policy is reproduced below:

“3. Tests will be conducted through NTS as per the past three chunks of recruitment made against the same cadre posts according to the following criteria already devised and approved. Obtaining a minimum 40% marks in the NTS will be mandatory for candidates beside academic qualifications required for the above mentioned posts, otherwise he/she will not be eligible for the post.”

A plain reading of the policy makes it manifest that obtaining a minimum of 40 percent marks was a condition precedent for eligibility to the advertised posts, and candidates failing to meet this threshold were ineligible for consideration. The requirement is unambiguous, leaving no room for departure. The Courts below, therefore, erred in disregarding the express mandate of the 2017 policy and in placing reliance upon the earlier 2014 policy, thereby failing to apply the governing policy framework.

7. Furthermore, the High Court observed that the directions issued by the Provincial Minister regarding the requirement of 40 percent marks had no legal effect. However, a plain reading of Rule 5(1) of the Khyber Pakhtunkhwa Rules of Business, 1985, demonstrates that the framing of departmental policy falls within the competence of the Minister. The criteria in question emanated from a policy framed by the competent authority in exercise of powers under the said Rules. In the absence of any finding that the policy is ultra vires, beyond the authority of the competent forum, or violative of constitutional provisions, the prescription of minimum qualifying marks falls squarely within the domain of executive policy. It is well settled that where the competent authority is empowered to frame policy relating to recruitment standards, such policy carries executive authority, and

the Courts ordinarily refrain from interfering unless it is shown to be unconstitutional or ultra vires.

8. Equally fatal to the respondents' case is the principle of estoppel. Having been fully aware of the prescribed criteria, the respondents participated in the recruitment process without protest. It is well settled that a candidate who voluntarily enters a selection process under known terms cannot, upon being unsuccessful, later challenge the criteria. Such conduct attracts the doctrines of waiver, estoppel, and acquiescence, and, accordingly, the respondents are estopped from disputing the eligibility requirements. In view of the foregoing, a declaratory suit under Section 42 of the Act is not maintainable in the absence of a pre-existing legal right, and mere dissatisfaction with a recruitment policy does not confer an enforceable claim. The proper remedy, if any, would have been to challenge the *vires* of the policy through appropriate constitutional proceedings.

9. In the light of the foregoing, these petitions are converted into appeals and allowed. The impugned judgment, as well as the concurrent judgments and decrees of the Courts below, are set aside. No order as to costs.

Islamabad
18th February, 2026
Zia/*Rameen LC

“Approved for Reporting”